

13. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

14. 9:00 AM CASE NUMBER: MSC21-01691

CASE NAME: GCL NEW ENERGY, INC. VS TRINA SOLAR US INC.

***HEARING ON MOTION IN RE: DISQUALIFY MICHAEL NELSON AS COUNSEL FOR DEFENDANT**

FILED BY: GCL NEW ENERGY, INC.

TENTATIVE RULING:

The hearing on this motion is vacated. The Parties informed the Court that this matter has settled as of November 24, 2025. The Court sets a further Case Management Conference (CMC) for March 24, 2026 at 8:30 a.m. to follow-up on the dismissal. If a Request for Dismissal is filed before March 24, 2026, this date will vacate. If not dismissed, the Parties are ordered to appear to provide an update on the resolution of this case.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02119

CASE NAME: JOHN ROE J.H., AN INDIVIDUAL VS. PHILLIP WEBB

***HEARING ON MOTION FOR DISCOVERY COMPEL CALIFORNIA COMMISSION ON TEACHER CREDENTIALING TO PRODUCE RECORDS SUBPOENAED BY PLAINTIFF**

FILED BY: ROE J.H., AN INDIVIDUAL, JOHN

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**

Background

On May 27, 2025, Plaintiff John Roe J.H. ("Plaintiff") filed a Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff. The Motion was accompanied by the Declaration of Counsel Veronica Diaz (submitted via errata) and a Separate Statement. Plaintiff seeks an order compelling CTC to release complete, unredacted records related to Pittsburgh Unified School District's former employee, Defendant Phillip Webb ("Defendant" or "Webb"), pursuant to a records subpoena. Plaintiff contends the documents sought are relevant, reasonably calculated to lead to the discovery of admissible evidence, and that good cause exists for

their production. Plaintiff further argues that any privacy interests are outweighed by Plaintiff's need for the materials, relying on Code of Civil Procedure §§ 2017.010, 2025.480, and 1987.1, as well as general discovery principles under the Discovery Act. Plaintiff acknowledges that Cal. Education Code § 44230 limits disclosure of credentialing information, but asserts that its restrictions have limited applicability under the circumstances.

CTC, represented by the Office of the Attorney General, filed an opposition, which Defendant joined. The opposition, supported by the Declaration of Counsel Joseph Halabrin, argues that (1) CTC's files are privileged; (2) the Education Code protects substantial privacy interests; (3) CTC employees risk criminal penalties if they disclose the requested documents without a court order; (4) Defendant's credentialing documents are not relevant; (5) the requested materials are not business records; and (6) CTC has already produced redacted copies of responsive records—105 pages, Bates-stamped PWEBB000001–PWEBB000105—including copies of Webb's credentials, credential history, and redacted portions of his applications.

Plaintiff filed a reply that addresses each argument raised by CTC. The Court has reviewed and considered those arguments in issuing this ruling.

Analysis

Plaintiff's Subpoena seeks information expressly deemed confidential by statute. (Ed. Code, §§ 44230, 44245.) Education Code section 44230, subdivision (a), provides:

"(a)(1) The commission shall maintain for public record, and may disclose only the following information relating to the credentials, certificates, permits, or other documents that it issues: the document number, title, term of validity, subjects, authorizations, effective dates, renewal requirements, and restrictions. The commission may also disclose the last known business address of any applicant or credential holder.

(2) Notwithstanding any other provision of law, except as provided for in Sections 44230.6 and 44248, **no information**, other than that set forth in paragraph (1), **may be disclosed by the commission absent an order from a court of competent jurisdiction.**"

Upon review, the Court finds CTC's interpretation of this section to be correct. The Legislature has expressly limited the scope of information that CTC may disclose without a court order to the items enumerated in subdivision (a)(1), together with the credential holder's last known business address. The statute mandates that "[n]o other information may be disclosed." (Ibid. [emphasis added].)

The Court also finds persuasive CTC's argument that the requested files are privileged pursuant to Education Code § 1040, which encompasses documents protected by attorney-client privilege, the work-product doctrine, and the deliberative process privilege. Section 1040 further provides that:

"Disclosure of the information is against the public interest because there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice; but no privilege may be claimed under this paragraph if any person authorized to do so has consented that the information be disclosed in the proceeding."

(Cal. Ed. Code, § 1040(b)(2).)

Here, the statutory purpose underlying the privilege supports nondisclosure absent consent from the credential holder. Defendant has not provided consent and, in fact, has joined in CTC's opposition to disclosure.

The record further establishes that CTC has produced all documents to which Plaintiff is entitled under the Education Code, albeit with redactions required by law. To that extent, the Motion is partially moot.

Having reviewed the moving papers, opposition, reply, and all supporting materials, and having applied the relevant statutory provisions and governing legal standards, the Court finds that Plaintiff has not established good cause for the relief sought. Accordingly, the Court rules as follows.

Ruling

Good cause not having been shown, Plaintiff's Motion to Compel Non-Party California Commission on Teacher Credentialing ("CTC") to Produce Records Subpoenaed by Plaintiff is **moot** to the extent CTC has already produced responsive documents, and is otherwise **denied**. CTC is ordered to prepare and electronically file a proposed order consistent with this ruling, attaching a copy of this tentative ruling, within ten (10) days of the hearing

16. 9:01 AM CASE NUMBER: C24-00731

CASE NAME: KEVIN RUBIO VS. LA AURORA LIQUOR

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO DEFENDANT'S DISCOVERY REQUESTS**

FILED BY: LA AURORA LIQUOR

TENTATIVE RULING:

Summary

This Court will conduct a hearing on:

(1) An Order to Show Cause as to Why this Case should not be Dismissed for Plaintiff Kevin Rubio's ("Plaintiff") Failure to Appear at the Case Management Conference on November 17, 2025. Per the Court's Notice mailed to Plaintiff Kevin Rubio on November 17, 2025, Plaintiff is ordered to appear at the November 26, 2025 to Show Cause as to why he failed to appear at the Case Management Conference. He is ordered to appear at 9:00 a.m, or soon thereafter, trailing the hearing on this Motion. He may appear via Zoom.

(2) Defendant La Aurora Liquor's Motion to Compel to Compel Responses from Plaintiff to Defendant's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One. With respect to Defendant La Aurora Liquor's ("Defendant") Motions, no timely responses were served by Plaintiff, despite an extension of time granted to Plaintiff's former counsel. Furthermore, Plaintiff did not file a timely opposition to this Motion. Accordingly, Defendant's Motions are **granted**.